

Present: Sh. Satish Aggarwal, Senior Counsel along with Sh. Lokender Raghav, Senior Standing Counsel for complainant-SFIO.
Shri Hari Kishan, Prosecutor for complainant-SFIO.
Shri Prashant Baliyan, Investigating Officer for complainant-SFIO.

S/Sh. Vishal Gupta, Aditya Singla, Pallav Gupta & Ms. Yashna Thakran, counsel for the accused Mukesh Modi and Rahul Modi.

Accused Mukesh Modi and Rahul Modi not produced by jail authorities.

Shri Vivek Tanwar, counsel for accused Vivek Harivyasi.

Accused Vivek Harivyasi on bail in person.

Accused Priyanka Modi in custody.

1. Accused Mukesh Modi and Rahul Modi not produced by the Jaipur Police. As observed in the earlier order dated 13.06.2019 both these accused have been arrested by the Rajasthan Police in case fir No.24 of 2018 and taken to Jaipur. As is clear from the order dated 17.06.2019 passed by Shri S.K. Duggal, learned Additional Sessions Judge-cum-Vacation Judge, Gurugram, on that day both the accused Mukesh Modi and Rahul Modi were produced by Inspector/SHO Ravinder Kumar with a request that both of them are in police custody in FIR No.24 till 22.06.2019 and the learned Vacation Judge considering that directed the SHO to produce both the accused before the undersigned today but today they have not been produced and no explanation by the SHO has been furnished in this regard. Even nobody is present on behalf of the Jaipur Police. However, it is stated by some police official, who has produced one of the accused Priyanka Modi that for want of sufficient police force, the other accused against whom production warrants were issued, could not be produced as is reported on their production warrants. But there is no explanation for non-production of accused Mukesh Modi and Rahul Modi who are also now lodged in Jaipur Jail. Be that as it may be. In these facts and circumstances let production warrants of accused Mukesh Modi and Rahul Modi be issued for 30.07.2019 the date already fixed for the regular proceedings directing the Superintendent, Central Jail, Jaipur and

concerned SHO, Special Operations Group, Rajasthan at Jaipur to produce these accused before this court on that day. In addition to this fresh production warrants of accused Ishwar Singh Sindal, Bharat Modi, Vaibhav Lodha, Bharat Das Vaishnav, Rohit Modi, Virender Modi, Vivek Purohit be also issued for the date fixed.

2. In the meanwhile let accused Priyanka Modi be kept in judicial custody and be produced before this court on **15.07.2019** directing the Superintendent, Central Jail, Jaipur to produce her before this court on that date.

3. At this stage an application for regular bail of applicant-accused Vivek Harivyasi, who is already on bail has also been received through Judicial Branch. Copy of the same has been given to the complainant-SFIO. The complainant-SFIO has also moved an application under Section 439(2) Cr.P.C. seeking cancellation of bail granted to accused Vivek Harivyasi and it has also filed status report-cum-reply to the application filed by the applicant-accused Vivek Harivyasi for regular bail for additional offences. Learned counsel for the applicant-accused seeks time to file reply to the application filed by the applicant-complainant. Accordingly the case file be also put up on **05.07.2019** for reply of application for cancellation of bail granted to accused Vivek Harivyasi and consideration on application for bail filed by accused Vivek Harivyasi. Since this accused is already on bail and appearing regularly, as such, his bail is extended till then subject to condition that his further bail will be subject to further orders of this court and he will continue to appear before the court till then.

Dt. 01.07.2019.

(Satish Kumar)

(Ravi Kumar Sondhi),
Sessions Judge, Gurugram.
(UID No.HR0026)